

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X
DIANE C. DESOUSA and
THOMAS E. DESOUSA,

Index No.600371/2021

Plaintiffs,

AFFIDAVIT IN SUPPORT

-against-

Justice Assigned:
Hon. Frank Tinari

RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,

Defendants.
-----X

State of New York)
County of Suffolk) ss:

Thomas DeSousa, being duly sworn deposes and says:

1. I am a Plaintiff in this action, as such I am fully familiar with the facts and circumstances herein. I am supplying this affirmation in support of Plaintiff's motion to dismiss Defendant Calvagno's Counterclaims and for other relief.

2. I am an older gentleman looking to live my life at home in peace.

3. I have lived in my home on Grand Central Avenue for 23 years, in relative peace and harmony with my neighbors.

4. I lived in peace with the Defendant Mr. Calvagno from the time he moved in, until the Dodge Hellcat came to town. Afterwards, my mornings then began with an explosion and guttural vibrations that rocked me to my very core.

5. I asked Mr. Calvagno to be a good neighbor and try to minimize the impact of his car when he started and operated it each day. I explained the effect the car had on me and wife every morning. The explanations and requests fell upon deaf ears. In fact, things got worse.

6. I awaken every morning with dread of the noise and vibration that will emanate

when he starts and idles his car. It is a horrible way to start your day, it is a worse way to live.

7. My wife and I were at our wits end, with nowhere to turn, when we decided to begin this action. Simple requests to Mr. Calvagno had failed, and the police seemed powerless to be able to catch him in the act and stop it.

8. Throughout this ordeal my wife and I have tried to be reasonable, we tried to reach out and come to an accommodation with Mr. Calvagno. We asked him to back his car into the driveway, so the car would start facing his home and would lessen the noise and vibration headed our way. That was firmly rejected.

9. My wife and I were then treated by Mr. Calvagno to lies about us. Our names and reputations were sullied, and we were called all sorts of vile names.

10. We were accused in Mr. Calvagno's pleadings of being homophobes, and calling Mr. Calvagno all sorts of vile names. Threatening his job, trying to get him fired, chasing him down through the streets, following him to work. None of this is true.

11. The remarkable thing is all of these horrid events that my wife and I are accused of, occurred from the time he was served in this action (1/11/2021), until the fifteen days after (1/26/2021), when he verified his answer and counterclaims.

12. Personally, I couldn't care less what Mr. Calvagno's sexual orientation is. It is not my care, or my concern.

13. Mr. Calvagno being gay doesn't keep me up at nights, or wake me up, or vibrate my home, or threaten our safety in the street, his car and driving does.

14. I have never uttered a single word about Mr. Calvagno's sexuality, either to him or anyone else.

15. If we had been offended by his sexuality or lifestyle, we would not have attended

numerous parties at his home prior to his buying his Dodge Hellcat.

16. I've been accused of following Mr. Calvagno as he drove to work. I was accused of cursing at Mr. Calvagno from inside my car and while driving behind him. The remarkable thing is that while Mr. Calvagno can vividly remember me yelling at him, and remember exactly what I said, Mr. Calvagno can't remember when or where this occurred. Keep in mind, all of this "yelling" would have needed to be heard above the din of his noisy car, and since this had to be January, through closed car windows. More interesting, Mr. Calvagno never reported this purported incident to the Police.

17. We live in an area with limited egress. Everyone has to pretty much take the same route to and from our homes until we reach locations that have greater road choices, Sunrise Highway, Merrick Road, Route 110 or one of the highways.

18. I've been accused in his pleadings of trying to get him fired apparently by serving a subpoena upon his client/customer who provided Mr. Calvagno with an evidentiary letter in this matter regarding his car.

19. The issues with this claim are: a) the subpoena to his client/customer was issued years after his pleading was filed; b) it was only issued in response to evidence the customer/client created and supplied and finally; c) we had no way of knowing the party that created that evidence on behalf of Mr. Calvagno was a customer/client of his.

20. Mr. Calvagno has gone out of his way to lie about me and my wife, fabricate statements attributed to us, fabricate events, fabricate threats, fabricate lie after lie. Many of these dreadful lies have been made under oath and/or put into Court documents.

21. I would ask the Court to understand my wife and I have never done any of the things the Defendant has alleged. This is demonstrated by the fact that he is unable to substantiate a single

a single instance of us having ever done any of the things he accuses us of.

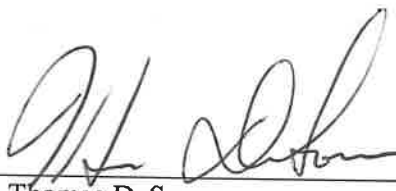
22. When he was put to the test and asked about times, dates, witnesses of any such event, all the clarity he has about what was supposedly done evaporates about the when, where and how, and there is never a camera or witness.

23. I have been derided, belittled and vilified by Mr. Calvagno for filing this action and seeking the protection of the Court in order to address Mr. Calvagno's callous conduct, but I ask, when faced with an unreasonable tormenter, what other course does a reasonable person have?

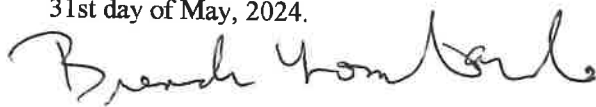
WHEREFORE, for the reasons stated herein, summary judgment in favor of the Plaintiffs dismissing each and every of Defendant Calvagno's Counterclaims must be granted in its entirety, together with such other, further and different relief this Court deems to be just and proper.

Dated: Amityville, New York
May 31, 2024

BRENDA LOMBARDO
Notary Public, State of New York
No. 01FR025408
Qualified in Suffolk County
Commission Expires March 28, 2026


Thomas DeSousa

Sworn to before me this
31st day of May, 2024.

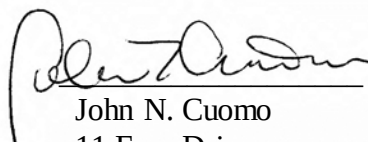


CERTIFICATION PURSUANT TO UNIFORM RULES 202.8-b

John N. Cuomo, an attorney duly admitted to practice law before the Courts of the State of New York, certifies that foregoing Affidavit was completed using a word processing system and that I have relied on that system's word count in preparing this certification and word count: The total words, excluding those permitted to be excluded (caption, signature block) is 1,050.

Dated: Commack, New York
May 28, 2024

Yours, etc.,

A handwritten signature in black ink, appearing to read "John N. Cuomo", is written over a horizontal line.

John N. Cuomo
11 Fern Drive
Commack, NY 11725
631-403-0515